

Court No. - 40

Case :- WRIT - C No. - 20711 of 2023

Petitioner :- Ajit Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Sarvesh Kumar Pandey, Parvesh Kumar Pandey

Counsel for Respondent :- CSC, Baleshwar Chaturvedi

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Gajendra Kumar, J.

1. Heard learned counsel for the petitioner; learned Standing Counsel for the State-respondents and Sri Baleshwar Chaturvedi, learned counsel for the respondent no. 3/Electricity Department.
2. The present writ petition has been preferred for quashing the order impugned dated 20.3.2023 passed by the third respondent whereby new electricity connection has been denied to the petitioner on the ground objection raised by his mother (owner of the property in question).
3. The order impugned is being challenged precisely on the ground that the petitioner has 1/8 share over the property in question and he has every right to get the electricity connection in view of the provisions contained under Clause 4.4 of the Electricity Supply Code, 2005.
4. Learned counsel for the respondent no. 3 very fairly that in case an application is moved by the petitioner in view of the aforesaid provisions, definitely, the same would be considered and decided expeditiously as per law.
5. In view of the above, on consent and without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, this writ petition is disposed of leaving it open to the petitioner to move an appropriate application in the light of aforesaid provision. In case any such application is being preferred, this Court hopes and trusts that the same would be looked into, examined and remedied strictly in accordance with law as expeditiously as possible and preferably within a period of six weeks from the date of production of a certified copy of the order.

Order Date :- 23.6.2023

A.K.Srivastava